

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|------------|
| <b>SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  | 1. REQUISITION NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                            | PAGE 1 OF 14                                                                                                                    |            |
| <b>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, &amp; 30</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| 2. CONTRACT NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 3. AWARD/EFFECTIVE DATE                                                                                                                                                                     |  | 4. ORDER NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                                                                                                                                                                                                                                                                                                                                                                            | 5. SOLICITATION NUMBER<br>36C24926Q0148                                                                                         |            |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | a. NAME<br>Delaney Dickey                                                                                                                                                                   |  | b. TELEPHONE NO. (No Collect Calls)<br>615-867-6000 ext. 28150                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                            | 6. SOLICITATION ISSUE DATE                                                                                                      |            |
| 9. ISSUED BY<br>Department of Veterans Affairs<br>Network Contracting Office 9 (90C)<br>NCO 9<br>1639 Medical Center Parkway, Suite 204<br>Murfreesboro TN 37129                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  | 10. THIS ACQUISITION IS<br><input checked="" type="checkbox"/> UNRESTRICTED OR <input checked="" type="checkbox"/> SET ASIDE: 100 % FOR:<br><input checked="" type="checkbox"/> SMALL BUSINESS<br><input type="checkbox"/> HUBZONE SMALL BUSINESS<br><input type="checkbox"/> SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS<br><input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM<br><input type="checkbox"/> EDWOSB<br><input type="checkbox"/> 8(A)<br>NAICS: 333415<br>SIZE STANDARD: |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| 11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 12. DISCOUNT TERMS                                                                                                                                                                          |  | 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)<br><input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                            | 13b. RATING<br>N/A                                                                                                              |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                            | 14. METHOD OF SOLICITATION<br><input checked="" type="checkbox"/> RFQ <input type="checkbox"/> IFB <input type="checkbox"/> RFP |            |
| 15. DELIVER TO<br>Department of Veterans Affairs<br>TVHS VA Medical Center, Nashville Campus<br>1310 24th Ave. S<br><br>Nashville TN 37212                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 16. ADMINISTERED BY<br>Network Contracting Office 9<br>Department of Veterans Affairs<br>Network Contracting Office (90C)<br>1639 Medical Center Parkway Suite 204<br>Murfreesboro TN 37129 |  | 17a. CONTRACTOR/OFFEROR CODE<br>FACILITY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  | 18a. PAYMENT WILL BE MADE BY<br>FSC e-Invoicing Payment<br><a href="http://www.fsc.va.gov/fsc/einvoice.asp">http://www.fsc.va.gov/fsc/einvoice.asp</a><br>Invoice Setup Information 1-877-489-6135<br>Invoice must be submitted electronically<br><br>PHONE: Setup 1-877-489-6135 FAX:                                                                                                                                                                                                                                                                 |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| TELEPHONE NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | UEI:                                                                                                                                                                                        |  | EFT:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| <input type="checkbox"/> 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <input type="checkbox"/> 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED<br><input type="checkbox"/> SEE ADDENDUM                                          |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| 19. ITEM NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | 20. See CONTINUATION Page<br>SCHEDULE OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                             |  | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           | 22. UNIT                                                                                                                                                                                                                                                                                                                                                                   | 23. UNIT PRICE                                                                                                                  | 24. AMOUNT |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | <p>The TVHS VA Medical Center, Nashville Campus requires quotes to provide Thermo Scientific Pharmacy Refrigerators IAW FAR Part 8.</p> <p>Questions regarding this RFQ are due to Delaney Dickey at <a href="mailto:delaney.dickey@va.gov">delaney.dickey@va.gov</a> NLT 03/26/2026 at 10:00am CST.</p> <p>Submission requirements are detailed in FAR 52.212-1 Addendum below.</p> <p>This requirement is a small business set aside. This is for brand name products. If you are not able to provide the exact brand name item, please include in your offer the salient characteristics of the equivalent items you can provide.</p> <p>Offers are due no later than 03/30/2026 at 10:00am CST.</p> <p style="text-align: center;">(Use Reverse and/or Attach Additional Sheets as Necessary)</p> |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| 25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | 26. TOTAL AWARD AMOUNT (For Govt. Use Only)                                                                                                                                                                                                                                                                                                                                |                                                                                                                                 |            |
| <input checked="" type="checkbox"/> 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br><input type="checkbox"/> 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br><input type="checkbox"/> 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | <input checked="" type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED.<br><input type="checkbox"/> ARE <input type="checkbox"/> ARE NOT ATTACHED<br><input type="checkbox"/> 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS: |                                                                                                                                 |            |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                             |  | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                 |            |
| 30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 30c. DATE SIGNED                                                                                                                                                                            |  | 31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)<br>Delaney Dickey<br>Contracting Officer                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                                                                                                                                                                                                                                                                                                                                                                            | 31c. DATE SIGNED                                                                                                                |            |

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## SECTION B - CONTINUATION OF SF 1449 BLOCKS

### B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C249 Delaney Dickey  
 Department of Veterans Affairs  
 Network Contracting Office 9 (90C)  
 NCO 9  
 1639 Medical Center Parkway, Suite 204  
 Murfreesboro TN 37129

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ In arrears upon receipt of property.

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

| AMENDMENT NO | DATE |
|--------------|------|
|              |      |
|              |      |
|              |      |

## B.2 PRICE/COST SCHEDULE

### ITEM INFORMATION

| ITEM NUMBER | DESCRIPTION OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | QUANTITY | UNIT | UNIT PRICE         | AMOUNT |
|-------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|--------------------|--------|
| 0001        | <p>Thermo Scientific TSX Series High-Performance Pharmacy Refrigerator, 115V 60Hz, Plug Type: NEMA 5-15, Electrical Requirements: 115 V 60 Hz, Dimensions: Refrigerator cannot exceed the following external dimensions due to space limitations: 30.5" Deep, 24" Width, 73" Height and must be at least internally 21.8" Deep, 20" Width, 52" Height, Door Style: Glass, Amperage: 15 A, Capacity: 23 cu. ft., 650 L Vendor Catalog # TSX2305PA Hazardous Material</p> <p>Contract Period: Base</p> <p>POP Begin: 04-01-2026</p> <p>POP End: 06-30-2026</p> <p>PRINCIPAL NAICS CODE: 333415 - Air-Conditioning and Warm Air Heating Equipment and Commercial and Industrial Refrigeration Equipment Manufacturing</p> <p>PRODUCT/SERVICE CODE: 4110 - Refrigeration Equipment</p> <p>MANUFACTURER PART NUMBER (MPN): TSX2305PA</p> <p>LOCAL STOCK NUMBER: TSX2305PA</p> | 3.00     | EA   |                    |        |
| 0002        | <p>Thermo Scientific TSX Series High-Performance Pharmacy Refrigerators, Plug Type: NEMA 5-15, Electrical Requirements: 115 V 60 Hz, Dimensions: Refrigerator cannot exceed the following external dimensions due to space limitations: 30.5" Deep, 24" Width, 73" Height and must be at least internally 21.8" Deep, 20" Width, 52" Height, Door Style: Glass, Amperage: 15 A, Capacity: 11.5 cu. ft., 326 L Vendor Catalog # TSX1205PA Hazardous Material</p> <p>Contract Period: Base</p> <p>POP Begin: 04-01-2026</p> <p>POP End: 06-30-2026</p> <p>PRINCIPAL NAICS CODE: 333415 - Air-Conditioning and Warm Air Heating Equipment and Commercial and Industrial Refrigeration Equipment Manufacturing</p> <p>PRODUCT/SERVICE CODE: 4110 - Refrigeration Equipment</p> <p>MANUFACTURER PART NUMBER (MPN): TSX1205PA</p> <p>LOCAL STOCK NUMBER: TSX1205PA</p>         | 1.00     | EA   |                    |        |
|             |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |          |      | <b>GRAND TOTAL</b> |        |

## B.3 DELIVERY SCHEDULE

| ITEM NUMBER | SHIPPING INFORMATION                                                                                                                                       | QUANTITY | DELIVERY DATE          |
|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------------------------|
| 0001        | <p>SHIP TO: Department of Veterans Affairs<br/>Nashville VA Medical Center<br/>1310 24th Ave S<br/>Nashville, TN 37212<br/>USA</p> <p>FOB: DESTINATION</p> | 3.00     | ASAP NLT<br>04/10/2026 |

|                  |                                                                                                                            |                     |
|------------------|----------------------------------------------------------------------------------------------------------------------------|---------------------|
| <b>0002</b>      | SHIP TO: Department of Veterans<br>Affairs<br>Nashville VA Medical Center<br>1310 24th Ave S<br>Nashville, TN 37212<br>USA | 1.00 NLT 04/10/2026 |
| FOB: DESTINATION |                                                                                                                            |                     |

## B.4 SALIENT CHARACTERISTICS

- Single Door Glass Refrigerator with Pharmacy-Grade rating for Medication storage needed in the medication rooms at various clinics being activated
- Medications and Vaccines are stored, cannot be stored elsewhere or transferred to another location within the facility
- Refrigerator cannot exceed the following external dimensions due to space limitations: 30.5" Deep, 24" Width, 73" Height and must be at least internally 21.8" Deep, 20" Width, 52" Height
- Refrigerator must fit through pharmacy entry doors (Maximum of 34" Width and 83" Height)
- Refrigerator needs to have at least 4-5 basket shelves that pull out for easier removal of medications/vaccines for approximately 15-20 medications, including IV admixtures and injection kits, and be able maintain a temperature of 3-8 degrees Celsius (Approximately 36-46 degrees Fahrenheit) 24 hours per day/7 days per week while fully powered for approximately 10-15 years (average Pharmacy-grade Refrigerator Lifecycle)
- Refrigerator should have audible alarm for out of temperature range alerts.
- Refrigerator should have an LCD screen that has the ability to see logs/graphs of temperatures, highs and lows, and settings
- Plug should be a NEMA 5-15, and Electrical Requirements be less than 120V, and pull 15 Amps or less
- Refrigerator should be energy efficient
- Refrigerator should ideally have a Manufacturer's Warranty that lasts 1-2 years and be accessible for Engineering staff to work on it once that warranty timeframe is exceeded but still within its functional lifecycle

## SECTION C - CONTRACT CLAUSES

### C.1 FSS RFQ INTRODUCTORY LANGUAGE

The terms and conditions of the contractor's FSS contract (including any contract modifications) apply to all Blanket Purchase Agreements (BPA) and task or delivery orders issued under the contract as a result of this RFQ. When a lower price has been established, or when the delivery terms, FOB terms, or ordering requirements have been modified by the BPA or task/delivery order, those modified terms will apply to all purchases made pursuant to it and take precedence over the FSS contract. Any unique terms and conditions of a BPA or order issued under the contract that are not a part of the applicable FSS contract will govern. In the event of an inconsistency between the terms and conditions of a BPA or task/delivery order and the Contractor's FSS terms, other than those identified above, the terms of the FSS contract will take precedence.

### C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<http://www.va.gov/oal/library/vaar/>

(End of Clause)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                                   | <b><u>Date</u></b> |
|------------------------------|---------------------------------------------------------------------------------------|--------------------|
| 52.203-17                    | CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS                                              | NOV 2023           |
| 52.203-19                    | PROHIBITION ON REQUIRING CERTAIN INTERNAL<br>CONFIDENTIALITY AGREEMENTS OR STATEMENTS | JAN 2017           |
| 52.204-13                    | SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE<br>(DEVIATION)                                | NOV 2025           |
| 52.209-10                    | PROHIBITION ON CONTRACTING WITH INVERTED<br>DOMESTIC CORPORATIONS                     | NOV 2015           |
| 52.219-6                     | NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE<br>(DEVIATION)                               | NOV 2025           |
| 52.222-19                    | CHILD LABOR—COOPERATION WITH AUTHORITIES<br>AND REMEDIES (DEVIATION)                  | NOV 2025           |
| 52.222-36                    | EQUAL OPPORTUNITY FOR WORKERS WITH<br>DISABILITIES (DEVIATION)                        | NOV 2025           |
| 52.222-50                    | COMBATING TRAFFICKING IN PERSONS (DEVIATION)                                          | NOV 2025           |
| 52.223-23                    | SUSTAINABLE PRODUCTS (DEVIATION)                                                      | NOV 2025           |
| 52.226-8                     | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT<br>MESSAGING WHILE DRIVING                | MAY 2024           |
| 52.232-40                    | PROVIDING ACCELERATED PAYMENTS TO SMALL<br>BUSINESS SUBCONTRACTORS                    | MAR 2023           |
| 52.233-3                     | PROTEST AFTER AWARD                                                                   | AUG 1996           |
| 52.233-4                     | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                                           | OCT 2004           |
| 52.244-<br>6DEV              | SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND<br>COMMERCIAL SERVICES                       | OCT 2025           |

|                      |                                                                                                                           |                    |
|----------------------|---------------------------------------------------------------------------------------------------------------------------|--------------------|
| 852.203-70           | COMMERCIAL ADVERTISING                                                                                                    | MAY 2018           |
| 852.208-70           | SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTORS—ORDERS OR BPAS (DEVIATION)             | JAN 2023           |
| 852.208-71           | SERVICE-DISABLED VETERAN-OWNED AND VETERAN-OWNED SMALL BUSINESS EVALUATION FACTOR COMMITMENTS-ORDERS AND BPAS (DEVIATION) | JAN 2023           |
| 852.212-71           | GRAY MARKET AND COUNTERFEIT ITEMS                                                                                         | FEB 2023           |
| 852.232-72           | ELECTRONIC SUBMISSION OF PAYMENT REQUESTS                                                                                 | NOV 2018           |
| <b><u>FAR</u></b>    | <b><u>Title</u></b>                                                                                                       | <b><u>Date</u></b> |
| <b><u>Number</u></b> |                                                                                                                           |                    |
| 852.246-71           | REJECTED GOODS                                                                                                            | OCT 2018           |

### **C.3 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)**

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

## **SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS**

See attached document: P03 - FSS LSJ - Pharmacy Refrigerators.



## SECTION E - SOLICITATION PROVISIONS

### E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;
- (10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at [assisthelp@dlamail](mailto:assisthelp@dlamail).

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the unique entity identifier that identifies the Offeror’s name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at [www.sam.gov](http://www.sam.gov) for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at [www.sam.gov](http://www.sam.gov) for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

#### ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

## SUBMISSION REQUIREMENTS

(1) Electronic Submissions: Quotes are due NLT 03/30/2026 at 10:00 a.m. CST. Quote packages should include the solicitation number in the Subject line. Any attachments must be readable using Microsoft Office or Adobe PDF. The size of the email is limited to 5 megabytes (MB) but multiple emails are allowable. Quotes must be submitted electronically to Delaney Dickey at [delaney.dickey@va.gov](mailto:delaney.dickey@va.gov) and will not be accepted through fax or postal mail.

(2) All questions regarding this solicitation must be emailed to [delaney.dickey@va.gov](mailto:delaney.dickey@va.gov) on 03/26/2026 by 10:00 am CST. Verbal inquiries or questions will not be addressed or accepted.

(3) The quote must provide "pricing information", "Technical Capability" "Delivery date" and "Verified Small Business status in SBA". Offerors who do not provide this information will not be considered.

(4) The Quoter has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>.

(a)Basis for Award. The Government will issue a purchase order to the responsible quoter whose quotation conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

(b)The following factors shall be used to evaluate quotations:

- 1) Technical/Quality
- 2) Pricing
- 3) Delivery date

## E.2 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

### **Technical:**

Quote must meet the brand name or equal capability statement. Descriptions of Technical Capability are limited to one (1) five-page document, single-sided, 12-point Times New Roman font on either MS Word or Adobe PDF, clearly detailing the quoted items' capability. The vendor must submit a complete package, and business must be registered in [www.SBA.gov](http://www.SBA.gov) as a small business entity.

### **Pricing:**

Quoting firms shall submit a pricing schedule that shows unit and Line-Item total prices for all equipment and associated items IAW the Salient Characteristics in this solicitation. Pricing shall include a final price of the requested products. Quotes that do not include a final tally of project price will be determined to be non-responsive and removed from the competition.

### **Delivery date:**

Please specify the delivery date.

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

### **E.3 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<http://www.va.gov/oal/library/vaar/>

(End of Provision)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                  | <b><u>Date</u></b> |
|------------------------------|------------------------------------------------------|--------------------|
| 52.204-7                     | SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION) | NOV 2025           |
| 852.273-70                   | LATE OFFERS                                          | NOV 2021           |